

25STCV21261 25STCV21261

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Case Number: 25STCV21261 Hearing Date: September 9, 2026 Dept: 509

Allen Shadgoo v. Volkswagen Group of America, Inc.

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES AND COSTS

MOVING PARTY: Plaintiff Allen Shadgoo

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a Song-Beverly action. Plaintiff Allen Shadgoo (Plaintiff) leased a 2023 Audi E-tron manufactured by defendant Volkswagen Group of America, Inc. (Defendant). Plaintiff alleges the vehicle failed to conform to applicable warranties.

On August 10, 2026, Plaintiff filed this instant motion to recover their reasonable attorney's fees and costs as prevailing party. Defendant did not file an opposition. [FN 1]

TENTATIVE RULING:

Plaintiff's Motion for Attorney's Fees is GRANTED, as requested, in the amount of \$59,940.50.

Plaintiffs' Motion for Costs is GRANTED in the requested amount of \$4,140.05.

Plaintiff is ordered to give notice, unless waived.

DISCUSSION:

Motion for Attorney's Fees

I. Analysis

A. Entitlement to Fees

On June 30, 2026, the parties resolved this case. (Barry Decl. ¶8, Ex. 1.) Pursuant to the settlement agreement, Defendant agreed that Plaintiff was the prevailing party and entitled to attorney's fees, costs, and expenses. (Ibid.)

Plaintiff now move for an order awarding attorney's fees and costs totaling \$64,080.55. This amount consists of: (1) \$59,940.50 in attorney fees and (2) \$4,140.05 in costs and expenses. (Mot. at p. 11.)

Civil Code, section 1794(d) provides:

(d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d) [emphasis added].)

Here, there appears no reasonable dispute that Plaintiff is the prevailing party under the Song-Beverly Consumer Warranty Act and the Settlement Agreement between the parties allows Plaintiff to recover their reasonable fees. Accordingly, Plaintiff is entitled to an award of reasonable attorney fees as the prevailing party.

B. Reasonableness of Fees

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

Here, the total attorneys' fees incurred by Plaintiff in this matter and requested by this motion are \$59,940.50, based on 109.6 hours of attorney time at an hourly rate between \$350 and \$695. (Barry Decl., Ex. 2.) Although, upon a cursory review, the claimed fees appear to be somewhat excessive, by failing to oppose, Defendant has not formally challenged the reasonableness of Plaintiff's attorney's fees. It was their burden to do so. (See, e.g., Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488 ["[I]t is the burden of the challenging party to point to the specific items challenged [within the moving party's verified billing invoice], with a sufficient argument and citations to evidence."])

Accordingly, Defendants' Motion for Attorney's Fees is GRANTED, as requested, in the amount of \$59,940.50.

C. Motion for Costs

Plaintiff seeks costs in the amount of \$4,140.05. (Memo. Of Costs.)

California Rules of Court, rule 3.1700 authorizes a party to contest the costs sought in a memorandum of costs by filing a motion to tax costs. (CRC Rule, 3.1700(b).) A motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. (CRC Rule, 3.1700(b)(1).)

Here, Defendant did not challenge the memorandum of costs.

Accordingly, Plaintiff's Motion for Costs is GRANTED in the requested amount of \$4,140.05.

IT IS SO ORDERED.

Dated: September 9, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - This motion was sufficiently served on the Defendant's counsel via email. (Mot. at pp. 101-102/104; Memo of Costs at pp. 8-9.)

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.